

IN THE CIRCUIT COURT OF THE THIRTEENTH JUDICIAL CIRCUIT
IN AND FOR HILLSBOROUGH COUNTY, FLORIDA
CIVIL DIVISION

CHRISTOPHER HANSON, individually and as attorney for himself and
attorney/next friend for his minor children,

Plaintiffs/Petitioners,

Case No.: 25-CA-010255

v.

Division: B

THIRTEENTH JUDICIAL CIRCUIT COURT, CHIEF JUDGE CHRISTOPHER
C. SABELLA, JUDGE KELLY AYERS, JUDGE MATTHEW FELIX, COURT
ADMINISTRATOR GINA JUSTICE (AND/OR CURRENT COURT
ADMINISTRATOR), MIKE MOORE, AND CLERK OF COURT VICTOR
CRIST,

Defendants/Respondents.

PLAINTIFF’S COMBINED MOTION FOR INTERLOCUTORY
RECONSIDERATION, REHEARING UNDER FLA. R. CIV. P. 1.530(g),
AND CLARIFICATION ON ORDERS AT DOCKET 80 AND 81

Plaintiff Christopher Hanson, pursuant to the Court’s inherent authority over its own interlocutory orders, Florida Rule of Civil Procedure 1.530(g), and established principles of clarification, respectfully moves for reconsideration and rehearing of the Court’s April 28, 2026 Order on Defendants’ Motion for Protective Order to Stay Discovery (Doc. 80) (the “April 28 Order”), and for clarification of the Court’s May 5, 2026 Order (Doc. 81) (the “May 5 Order”). In support, Plaintiff states:

I. INTRODUCTION & PROCEDURAL POSTURE

1. This motion addresses two interlocking orders that create a condition of absolute procedural impossibility. The April 28 Order stays all of Plaintiff's meaningful discovery (leaving only Requests for Admission). Conversely, the May 5 Order commands the parties to identify the "disputed facts of the case" and submit availability dates for a single-day final evidentiary hearing between May 18, 2026 and June 19, 2026.
2. Compliance with these directives is a legal and logistical impossibility. The Court cannot immunize Defendants from discovery while simultaneously tasking Plaintiff with identifying the specific factual disputes tied to records that Defendants are hiding.
3. This motion is timely filed. The Court possesses inherent authority to reconsider interlocutory orders at any time prior to final judgment. See *Carollo v. Carollo*, 920 So. 2d 16, 19 (Fla. 3d DCA 2004); *Bettez v. City of Miami*, 510 So. 2d 1242, 1242–43 (Fla. 3d DCA 1987). Alternatively, because the May 5 Order clocked into the docket on May 5, 2026, this motion is served within the strict 15-day window prescribed by Florida Rule of Civil Procedure 1.530(g).

II. GROUNDS FOR INTERLOCUTORY RECONSIDERATION OF THE DISCOVERY STAY (DOC. 80)

A. The Discovery Stay Defects Under Chapter 119 and Rule 1.280(b)(6) Waiver

4. Section 119.11(1), Florida Statutes, commands that public-records enforcement actions are entitled to an "immediate hearing" and must receive absolute "priority over other pending cases." The April 28 Order's discovery

stay directly conflicts with this legislative priority mandate by indefinitely deferring the verification of Defendants' broad confidentiality assertions.

5. Defendants have blanketed this case in secrecy, (beyond the obvious refusal to allow public access to these records critical to justice in the underlying case and more broad throughout Florida) without satisfying a single threshold procedural hurdle.
6. To date, Defendants have:
 - Failed to produce any privilege log or record-by-record index identifying what has been withheld. Under Florida Rule of Civil Procedure 1.280(e)(6), the failure to timely provide a privilege log constitutes a complete, self-executing waiver of any underlying privilege or confidentiality claim.
 - Failed to file a formal Motion to Determine Confidentiality of Court Records, accompanied by the mandatory good-faith signed certification required by Florida Rule of Judicial Administration 2.420(e)(1).
 - Asserted a categorical "surveillance video footage" exemption under § 119.071(3)(a), Florida Statutes, regarding the April 4, 2025 hearing-room recording, wholly unsupported by sworn affidavits, system documentation, or a "no less restrictive measures" analysis under Rule 2.420(c)(9)(B)–(C).
 - The Defendants' failures to comply with constitutional transparency are so severe that they have not even identified what records they are withholding from public access.

7. Conditioning a final evidentiary hearing on an unparticularized record rewards nine months of continuous non-compliance. The in-camera review framework outlined in paragraph (d) of the April 28 Order is functionally unworkable because there is no defined universe of documents to inspect.

B. The Discovery Stay inflicts Direct, Irreparable Harm via Parallel Proceedings

8. The discovery stay is not an abstract issue; it actively cripples Plaintiff's ability to get a fair result in an ongoing parallel family-law action (Case No. 2024-DR-001150). The April 4, 2025 hearing-room recording sought here is the exact record that the original presiding judge offered on the record to retrieve, and then explicitly refused to retrieve four hours later in that same hearing (see Exhibit 1, 1150 Docket #198). Furthermore, Plaintiff has actively tried, and failed, to compel the trial court to review this video in the family docket by filing a formal Motion for Judicial Review of Video Record (see Exhibit 3, 1150 Docket #280) – despite the fact that the April 4, 2025 video is on the same motion currently before the Court in May 2026.
9. This proves the family court is willfully ignoring and suppressing the very record that the 13th Circuit administration is unlawfully withholding – the one that Judge Ayers offered into the record, making it directly relevant to the issues before these Courts and due process.
10. There are irregularities with ongoing, related litigation against the Florida Bar in Case No. 2025-CA-002469, now on appeal at 1D2026-0728. Plaintiff submits that both the Florida Bar and the 13th Circuit grossly failed in oversight duties specifically in regards to attorney misconduct from attorney Davis.

11. Yet, the Defendant-Judge Felix continues presiding over the family law case continuing to accommodate and prolong Davis's intentional concealment of relevant records, while the 6th Circuit continues to accommodate and prolong the 13th Circuit's concealment of evidence.
12. What should have been a month or two of discovery issues has turned into a nightmare now spanning over 2 years. The 6th Circuit has an obligation to follow the constitutional mandate for transparency, which will in turn allow justice to prevail in the underlying litigation.
13. The successor family law judge, Hon. Matthew Felix, is a named Defendant in this mandamus case but continues to preside over the children's welfare. On February 3, 2026, Judge Felix abdicated scheduling authority to opposing counsel to defer discovery at the very core of the case. See Exhibit 2 (1150 Docket #279) (Transcript of 2/3/26 hearing).
14. On April 17, 2026, Judge Felix explicitly declined to enforce a pending Motion to Compel and flatly refused to enter written findings of fact regarding his obvious structural conflict (see Exhibits 6, 7, and 8). To force this issue as a gatekeeper prerequisite, Plaintiff formally placed this structural conflict—specifically Judge Felix's status as an active, named defendant in the 10255 Mandamus action—on the record before he ruled. Plaintiff achieved this by filing a Notice of Invocation of Constitutional Rights (see Exhibit 4 (1150 Docket #290)) and a Notice of Filing Additional Evidence of Structural Conflict (see Exhibit 5 (1150 Docket #294)).
15. Every day this discovery stay remains active in this action is a day Defendants are shielded from testing their exemption claims, while their co-

defendant judge systemically and unlawfully blocks basic reciprocal discovery on the parallel record.

C. Unparticularized Adjudication on the April 13, 2026 Hearing Record

16. Reconsideration is further required to address an unparticularized adjudication that occurred during the April 13, 2026 Zoom hearing from which the April 28 Order materialized. On that record, the Court introducing a comment *sua sponte*, asserted: “At past times, you have not been correct on the law. So you’ll forgive the court if the court doesn’t simply do it because you said so...” (Tr. 30:7–10).
17. Plaintiff immediately requested specification of the alleged error three distinct times (Tr. 30:14–15, 34:25, 43:11–14). The Court declined to identify any specific ruling, order, page, paragraph, statute, or rule, stating only: “Mr. Hanson, you could probably go back and read over my orders and find those, but.” (Tr. 30:16–17).
18. When Plaintiff asked if the Court could point to a single instance where Defendants had actually raised an issue of material fact regarding an exemption, the Court shifted, stating: “I’m not here to conduct a lecture or a lesson” (Tr. 45:13–18).
19. Conversely, Plaintiff has alleged several occasions throughout both Judge Frayman’s and Judge Coleman’s handling of the matter when the Court’s unnoticed and unraised actions were in direct conflict with the facts and the constitutional mandate.

20. The question of whether Law and Order prevail in the state of Florida is genuinely at issue in this and related cases across circuits and even district courts of appeal.
21. Resolving a discovery stay against Plaintiff via generalized, unparticularized accusations of past error—while leaving Defendants’ wholesale violations of Rule 1.280(b)(6) and Rule 2.420(e)(1) unaddressed—is precisely the type of procedural gap that interlocutory reconsideration is designed to rectify.

III. GROUND FOR CLARIFICATION: THE TOTAL ABSENCE OF “DISPUTED FACTS” ON THE CURRENT RECORD

22. While Plaintiff agrees that it is the parties’ burden to identify disputed facts, Defendants’ absolute statutory silence has left a record devoid of any factual disputes to try.
23. Defendants have filed five separate substantive responses in this case (Docs. 40, 55, 63, 65, 72). Across all five, they have failed to deny Plaintiff’s explicit allegations of a “bait-and-switch” document dump regarding the August 21, 2025 public-records production.
24. Under Section 90.803(18)(b), Florida Statutes, a statement is admissible as non-hearsay if a party has manifested an adoption or belief in its truth. Florida law has long established that a failure to deny direct, written accusations under circumstances where a denial would naturally be expected constitutes an *adoptive admission by silence*. *Sullivan v. McMillan*, 26 Fla. 543, 8 So. 450 (1890); *Globe v. State*, 877 So. 2d 663 (Fla. 2004).
25. Because Defendants’ procedural silence operates as a matter of law as an admission of intentional concealment and bait-and-switch tactics, there are no

material facts left to dispute. The record presents a pure question of law: whether a peremptory writ of mandamus must issue immediately on an undisputed record void of any evidence, pleading or argument raising any material issue for the Court.

IV. THE COURT’S MANDATORY DUTY TO RULE ON LEGAL SUFFICIENCY BEFORE TRIAL

26. Setting this matter for an evidentiary hearing bypasses the Court’s mandatory, threshold statutory obligations. Florida Rule of Civil Procedure 1.630(e), incorporating Rule 1.140(d), explicitly commands that the legal sufficiency of a return to an alternative writ “shall be heard and determined before trial.”
27. Two separate judges have issued active, operative Alternative Writs finding that Plaintiff has established a *prima facie* entitlement to these records (Judge Frayman’s January 13, 2026 Writ, Doc. 47; Judge Coleman’s February 17, 2026 Writ, Doc. 62). Defendants’ return contains no privilege log, no Rule 2.420 motion, and no sworn evidence. The return is legally insufficient on its face. Rule 1.140(d) commands that this insufficiency be adjudicated *now*, rendering a trial wholly unnecessary.
28. The Court has apparently overlooked the new filing at Doc. 78: The May 5 Order notes that Plaintiff’s Motions for Summary Final Order (Docs. 74 & 79) are duplicative.
29. However, the Order is completely silent on Plaintiff’s April 15, 2026 Motion for Sanctions and Entry of Peremptory Writ (Doc. 78). Doc. 78 is an entirely separate, independent motion advancing waiver, facial pleading insufficiency,

and a motion to strike under Rule 1.140(f). Clarification is required as to when the Court intends to rule on Doc. 78.

30. **Scrivener's Error:** Paragraph 1 of the May 5 Order mandates scheduling compliance based on "an order dated April 18, 2026." No such order exists on the docket. Plaintiff assumes this is a scrivener's error meant to reference the Protective Order (signed April 28, 2026 at Doc. 80) and requests formal confirmation.

V. RELIEF REQUESTED

WHEREFORE, Plaintiff respectfully requests that this Court enter an order:

- A. RECONSIDERING and REHEARING** the April 28 Order (Doc. 80), and vacating or conditioning the discovery stay upon Defendants' immediate, prompt production of a record-by-record privilege log, documentation supporting a material dispute, and a formal Rule 2.420(e)(1) Motion to Determine Confidentiality;
- B. CLARIFYING** the Court's compliance with the mandatory duty under Florida Rules of Civil Procedure 1.630(e) and 1.140(d) to formally rule on the facial legal sufficiency of Defendants' return before an evidentiary hearing is set or held;
- C. CLARIFYING** whether Defendants will be forced to comply with their threshold statutory duties (particularized exemption Fla. R. Gen. Prac. & Jud. Admin. 2.420(m)(2), 2.420(e)(1), § 119.07(1)(f)) before Plaintiff can be forced to identify "disputed facts" tied to invisible records;

- D. CLARIFYING** the Court’s intended procedure and timing for hearing and ruling upon Plaintiff’s independent April 15, 2026 Motion for Sanctions and Peremptory Writ (Doc. 78);
- E. CONFIRMING** that the reference to an “April 18, 2026 order” in the May 5 Order is a scrivener’s error intended to mean the April 28, 2026 Order (Doc. 80); and
- F. TOLLING** Plaintiff’s obligation to submit scheduling availability dates under paragraph (e) of the April 28 Order pending a formal ruling on the clarifications and reconsiderations sought herein.
- G. All other relief** that Justice requires and/or the Court may order.

CERTIFICATION

I, Christopher Hanson, both as Plaintiff and as Plaintiff’s attorney, and as an officer of the Court, declare under penalty of perjury that the foregoing is true and correct to the best of my knowledge.

Certified and executed on May 20, 2026.

/s/ Christopher Hanson
Christopher Hanson, Esq.
Florida Bar No. 44094
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CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true and correct copy of the foregoing has been filed and served via the Florida Courts E-Filing Portal on this 20th day of May, 2026, to:

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